THE STATE
versus
TONDERAI MARIWO

HIGH COURT OF ZIMBABWE
**MUREMBA J**
HARARE, 23, 24 & 26 March 2026

**Criminal Trial**

*B. Murevanhema,* for the State
*Mrs M.M. Sibanda,* for the Accused

ASSESSORS: Mr. Mhandu
Mrs. Mawoneke

MUREMBA J:

*Introduction*

1. The accused is charged with murder as defined in section 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. It is alleged that on 1 December 2022, at his rural homestead in Mundoza Village under Chief Nyakuchena in Mudzi, he murdered his father.

2. On 9 February 2026, the accused appeared before this court for commencement of his trial. The State witnesses who included his mother and brother, were in attendance. However, the accused's file contained no defence outline. Defence counsel informed the court that she had visited Harare Remand Prison the previous week, where the accused was being held pending trial, but had been unable to obtain instructions. She explained that the accused presented as though suffering from a mental illness. He was hallucinating, pointing threatening fingers at her, and failing to respond to questions. Prison officers had to subdue him. In those circumstances, he did not provide her with instructions regarding the nature of his defence to the charge. Defence counsel accordingly applied for an order directing that the accused be examined by two medical practitioners in terms of s 28 the Mental Health Act [*Chapter 15:12*], to ascertain his fitness to stand trial.

3. In response to the application by the defence, State counsel Mr. *Murevenhema* submitted that the accused had previously been committed to Chikurubi Psychiatric Unit for treatment. He received psychiatric care, recovered, and was discharged back to Harare Remand Prison on 14 March 2025 to await trial. The psychiatrist who discharged him certified that he was fit to stand trial. However, in light of the submissions made by defence counsel regarding the accused's current presentation, Mr. *Murevenhema* indicated that the State had no objection to the accused being examined by two medical practitioners in terms of the Mental Health Act *[Chapter 15:12]* to ascertain his fitness to stand trial.

4. The court proceeded to engage the accused directly in order to ascertain whether he was indeed hallucinating and unable to comprehend proceedings. In response to questions, he was able to state his name, age, and date of birth, and acknowledged that his father had died. However, when asked when his father had died, he replied that he did not even know why he was in court, insisting instead that he should be at home caring for his mother. When asked if he was married, he stated that upon leaving "this place" he intended to marry and take care of his mother.

5. When asked why he was in court, the accused said he was present because of "an illness from Harare High Court." Pressed further on what illness he referred to, he answered "a mental illness," but added that he was feeling better now. When asked again why he was in court, he said he was there to hear whether "the superiors in government" would discharge him and allow him to return home to Mudzi. When questioned about what had happened to his father, the accused alleged that his brother Parry, who was seated in the gallery, had killed him. He claimed he had found the two fighting but was the one who ended up being blamed for his father's death. He further stated that he had been taking medication for mental illness since 2011.

6. The court asked why he had refused to speak to his lawyer during her visit to the remand prison. He responded that he had spoken to her and told her he did not know what had happened because he was mentally ill. At that point, the accused clapped his hands. The court also noted that while his legal practitioner was making submissions, the accused was busy talking to himself.

7. Following the court's interview with the accused, defence counsel submitted that, in her view, the accused appeared to be communicating more coherently than he had during her earlier prison visit. She explained that when she had attempted to interview him at Harare Remand Prison, he had refused to discuss the murder charge and, upon its mention, had pointed fingers at her in a threatening manner. Counsel nevertheless maintained that the accused required medical examination to determine his fitness to stand trial.

8. The court accordingly granted the application and ordered that the accused be examined by two medical practitioners in terms of the Mental Health Act [*Chapter 15:12*]. At the same time, the court addressed the accused directly, stressing that if he was feigning mental illness, such conduct would yield him no benefit. He was warned that this behaviour would only result in his continued detention: being committed back to the psychiatric unit for treatment, discharged again to remand prison, and thereafter returned to court. The court made it clear that if he chose to persist in such games, he would spend his life being shuttled between these three institutions. He declared that he did not want to go back to the psychiatric unit.

9. The court's warning proved effective. On 23 February 2026, he was examined by two medical practitioners, both of whom concluded that he was well-oriented and fit to stand trial, with one noting that his fitness was contingent upon continued treatment. Following these examinations, defence counsel was able to obtain proper instructions from the accused and subsequently prepared a coherent defence outline. The matter was then postponed to 23 March 2026 to enable the State to re-subpoena its witnesses, who had previously been excused pending the outcome of the medical assessment on the accused's fitness to stand trial. From the day the trial commenced, proceedings ran smoothly without disruption. The accused no longer responded irrationally to questions and raised no challenges throughout the trial. This was clear proof that the accused was feigning mental illness when he was visited by his lawyer in prison and when he first appeared in court for trial, where he exhibited signs of mental instability. The behaviour was not genuine but a deliberate tactic designed to delay the commencement of proceedings. Courts must remain vigilant against such stratagems, as feigned illness undermines the integrity of the justice system and obstructs the timely resolution of cases. In this instance, the accused's conduct demonstrated a

calculated attempt to manipulate the process, rather than a *bona fide* manifestation of psychiatric incapacity.

10. At the commencement of trial, the accused tendered a plea of not guilty to the charge of murder. Without being asked, he even went on to explain that he had been unwell at the time he killed his father and was therefore not in a position to admit or deny the charge. Defence counsel confirmed that the plea was consistent with the instructions she had received from him. The manner in which the accused tendered his plea and proceeded to explain that he was unwell at the time he killed his father is clear proof that he was mentally sound and in full appreciation of the court proceedings. His ability to provide an explanation of his mental state demonstrates that he understood the nature of the trial and was capable of participating meaningfully in it. This buttresses the conclusion that his earlier conduct where he exhibited signs of mental illness during prison visits and at his first court appearance was a deliberate attempt to delay the commencement of proceedings rather than a genuine incapacity. Such tactics undermine the integrity of the judicial process and cannot be condoned, as they amount to manipulation of the court's time and resources. The accused's subsequent clarity in plea and explanation confirms that he was fit to stand trial and that his earlier behaviour was feigned.

11. In his defence outline, the accused relied on mental illness at the time of the offence, stating that he had been hallucinating and did not appreciate that his conduct could result in the death of another person. He further indicated that he was on Chlorpromazine (CPZ) medication for the management of his mental condition.

***Common Cause Evidence***

12. From the evidence led before the court by both the State and the defence, it is common cause that the accused killed his father on 1 December 2022. It is not disputed that the accused, then aged 33, resided with his parents at their homestead in Mudzi, just the three of them. The accused was the last born in a family of 8 children. On the night of 1 December 2022, at approximately 11:30 p.m., the accused left his bedroom hut and proceeded to the hut where his parents were sleeping. He knocked on the door and requested a bucket for watering the garden from his father, the deceased. The deceased proceeded to another hut, fetched a bucket, and as he was

handing it to the accused, the accused struck him with an axe multiple times on the neck. Thereafter, the accused beheaded him and, using a knife, severed a thumb and the testicles, which he then placed in the 20 litre bucket the deceased had brought. He then took a large stone and placed it on top of the deceased's body. The accused took the bucket with the body parts to his elder brother's place Parry Mariwo where it was later recovered when the police attended the scene.

13. The accused's mother Josephine Nyamimbi who had been sleeping in the same bedroom hut with the deceased heard unusual sounds. On going outside, she saw the accused beheading the deceased, who was lying on the ground. Terrified, she fled to the homestead of her eldest son Parry Mariwo, situated just over 100 metres away, and reported to him what had transpired.

14. It is common cause that the accused had been suffering from a mental illness since 2011. He had been on continuous treatment for several years and remained under medication at the time of the offence. His regimen included a monthly injection as well as four tablets daily—two taken in the morning and two in the evening. On the morning of 1 December 2022, the accused had in fact received his scheduled injection from the local nurse, Sister Chipere. Later that same evening, he killed his father in the manner described above.

***The Disputed Issue***

The disputed issue was whether or not the accused was suffering from a mental disorder at the time he killed his father.

***Evidence Led to Resolve the Issue***

***The State's Evidence***

15. With the consent of the defence, the State tendered the axe, the knife and the bucket used by the accused during the killing of his father as exhibits to support its case. The State also produced the post-mortem report, which confirmed that the deceased's cause of death was beheading. The evidence of the accused's mother Josephine Nyamimbi who was not able to come to court to testify due to illness, the evidence of the investigating officer and the evidence of the doctor who examined the remains of

the deceased was formally admitted in terms of s 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*].

16. It was the uncontested testimony of the accused's mother, Josephine Nyamimbi, that on the night of 1 December 2022, at approximately 11:30 p.m., she was sleeping with the deceased when the accused came and knocked at their bedroom hut. He requested a bucket for gardening from his father. The deceased went into another room, about eight metres away, to fetch the bucket. After about ten minutes had passed without his return, she heard unusual sounds which prompted her to investigate. On stepping outside, she found the accused beheading the deceased, with blood gushing out. She attempted to stop him, but he persisted. Terrified, she fled to the homestead of her eldest son, Parry, to inform him of what the accused had done.

17. *Viva voce* evidence was led from the accused's elder brother, Parry Mariwo. He testified that on the night in question, his sickly elderly mother, crawled to his home around midnight to inform him that the accused had killed and beheaded the deceased. He recalled asking her to confirm the truth of her statement, and upon her confirmation, he proceeded to his younger brother Hamadziripi Mariwo's homestead. The two agreed to call the police and the village head. Hamadziripi was assigned the task to call the police and the village head while Parry went back to his home to check on their mother whom he had left alone.

18. Parry further testified that upon returning to his homestead to check on his mother, she told him that the accused had passed by wielding an axe and left a bucket on the kitchen fireplace. Out of fear, Parry did not open the bucket. It was later discovered, after the police arrived and began searching for the deceased's severed body parts, that the bucket left in Parry's kitchen contained those missing body parts. Parry also stated that according to his mother, when the accused left the bucket, he continued on his way carrying the axe. The axe was later discovered about 300 metres away hidden in the mountain. It is the accused who led the police to its recovery.

19. After hiding the axe, the accused proceeded towards a certain mine. On his way, he was intercepted and apprehended by a cousin, who brought him back to his parents'

home where the deceased's body was. When the police arrived at the accused' parents' homestead around 7 or 8 a.m. at day break, they found the accused there. He was being restrained by members of the crowd who had gathered, as he had attempted to flee before the arrival of the police.

20. When questioned about what the deceased was doing or saying at the time he was apprehended by the gathered crowd at the homestead, the witness testified that the accused stated he had killed the deceased because "he was the one troubling him." The witness further explained that the accused had never held steady employment, had never married, and had no children. He and other family members believed that the misfortunes which were being suffered within their family were the result of the deceased's involvement in black magic allegedly obtained from a foreign national. The significance of this testimony lies in its demonstration of the ill-feelings the accused was said to have harboured against his father. Although the witness confirmed that the accused had never verbalised any intention to kill their father, he recalled that the accused had once attacked him, resulting in a fractured skull.

21. The witness testified that it was a fact that the deceased, their father, had once dabbled in black magic, which he had received as a lucky charm from a foreign national. The charm was intended to improve his chances of securing employment. Unfortunately, he dropped it in a public place in Harare and, being too embarrassed to retrieve it, left it behind. This, according to the witness, was the deceased's confession to his family when, later in life, they began to experience misfortunes and several of the children developed mental illness. Three of the five sons suffered from mental illness, including the witness and the accused. The witness explained that he was fortunate enough to receive treatment and recover, while another brother who remains mentally ill resides in Bulawayo. He further stated that one of their three sisters also suffers from mental illness, though she is married. Parry said he is the first born in the family.

22. The witness also testified that on the very day the accused killed the deceased, he had received an FD injection, a long-acting antipsychotic drug administered at the local clinic by Sister Chipere. This evidence was later confirmed by the accused himself during the defence case when he gave his testimony. Parry Mariwo stated that he did

not believe the accused was mentally disordered at the time of the killing, as he was on his prescribed medication and appeared stable. He emphasised that the medication the accused was taking had the effect of stabilising him, and that on the morning of 1 December 2022, the accused had received his monthly injection from the nurse at the local clinic. Parry described the accused as a generally violent person who is deeply feared within their community. He explained that the accused has a habit of unlawfully entering other people's homes to steal.

23. Parry recounted a personal experience in which the accused assaulted him so severely that he lost his teeth, a permanent reminder of the accused's violent disposition. Parry further testified that the accused had no respect for their father, often bullying him and assuming a domineering role in the household, as though he were the head of the family himself. By contrast, the accused maintained a more favourable relationship with their mother, with whom he was said to be on good terms. Importantly, Parry emphasised that this violence is not attributable to the accused's mental illness, as he is on medication which stabilises his condition. Rather, Parry portrayed the violence as intrinsic to the accused's character, an ingrained trait that persists irrespective of his medical treatment. His testimony painted a picture of a man whose aggression and lawlessness are habitual, deliberate, and independent of any psychiatric instability.

***The Accused's Evidence***

24. When the accused took the witness stand, he clearly narrated the events leading up to the killing and beheading of his father. His account closely corroborated the testimonies of his mother and elder brother. He narrated his story with coherence and fluency, which stood in stark contrast to his earlier appearance before the court on 9 February 2026, when he had presented as mentally disordered and claimed that the deceased had been killed by his brother Parry.

25. The accused told the court that on the fateful day at about 5–6 p.m., he passed by a certain homestead and purchased two sachets of a drug he referred to as "skunk." He explained that the drug was in powder form, made from ground cannabis or dagga seeds. From the two sachets which he bought for USD 10.00 after selling two buckets

of mangoes, he prepared three or four cigarettes, which he smoked in succession around 9 p.m. in his bedroom. He stated that once the drug took effect, he began hallucinating, hearing voices instructing him to kill and seeing frightening, oversized creatures around the homestead.

26. The accused said he left his bedroom, and went to the kitchen hut where his parents were sleeping as his mother was not feeling well. He asked his father for a bucket for watering the garden. He explained that, under the influence of the drug, he became disoriented in time hence his asking for a bucket to water the garden from the deceased at night. When his father opened the door, he appeared to the accused as a very large snake. At the time the deceased proceeded to the bedroom hut to fetch the bucket, the accused went back to his bedroom hut which was also his kitchen (as the accused was cooking by himself) to collect an axe and a knife. Believing he was confronting a dangerous creature, the accused struck his father three times with the axe on the neck and shoulder area as he was coming out of the bedroom hut with the bucket. Using the knife, he then beheaded his father and severed the testicles and thumb to ensure, in his mind, that the creature was dead and could not come back to life.

27. The accused claimed it was his first time smoking dagga, though the court noted the inconsistency of this assertion given his later admission that his mother had cautioned him against using it. He further acknowledged that he was aware of the dangers of mixing prescribed medication with illicit drugs, and that he had been warned against doing so. When asked directly why he struck the deceased, the accused attributed his actions to the effects of the ‘skunk’ he had smoked earlier that evening. He further stated that the rock he placed on top of the deceased after severing his body parts was extraordinarily large. It was so heavy, in his estimation, that it would ordinarily require four to six men to lift. In recounting this, the accused expressed astonishment at the strength he had displayed in lifting the rock on his own.

28. The accused also testified that his mother supervised his daily oral medication, Chlorpromazine (CPZ), but admitted that he occasionally skipped doses when away from home during escapades with sex workers at the business centre. He confirmed

that on the morning of 1 December 2022, he had received his scheduled monthly injection at the local clinic.

29. The defence produced an affidavit deposed to by Dr. S. W. Mazorodze, who had examined and treated the accused at Chikurubi Psychiatric Unit during his committal there for treatment. In the affidavit, the doctor stated that the accused had a history of mental illness dating back to 2011 and had been on medication. He further recorded that, at the material time, the accused had stopped taking his medication for six months. This assertion, however, is inconsistent with the evidence given by the accused himself and his brother Parry, both of whom confirmed that on the day the accused killed his father, he had in fact received his monthly injection at the local clinic. The court therefore finds that the accused misled the doctor regarding when he had last taken his medication.

30. Be that as it may, the doctor's affidavit went on to state that on the day of the offence the accused admitted to having smoked cannabis and to hearing voices instructing him to kill. He was also experiencing paranoid delusions but the accused expressed remorse for his actions. The doctor concluded that the accused was mentally disordered at the time he killed his father.

***Finding on the Accused's State of Mind at the Time of the Commission of the Offence***

31. From the totality of the evidence led before this court, three perspectives must be considered: that of the accused's brother Parry, the accused himself, and Dr. Mazorodze. Parry testified that the accused was on his prescribed medication, had received his monthly injection on the very morning of the offence, and appeared stable. He did not believe that the accused was mentally disordered when he killed their father. He also recalled that the accused had previously attacked the deceased, fracturing his skull, and that he harboured resentment towards him. This testimony points to a man who, though suffering from a long-standing mental illness, was under treatment and presented as stable on the day in question. However, he was not asked when last he had seen the accused on the day in question.

32. It is evident, however, that this witness was unaware that the accused had taken cannabis later that evening, around 9 p.m., just a few hours before killing his father. At the time, the accused was alone in his bedroom. The witness, being his brother, could not have known this, as he resided at a separate homestead. Besides, it was never put to the witness by the defence counsel that the accused had taken cannabis on the evening in question.

33. The accused's own testimony was that he smoked cannabis, which he referred to as "skunk," on the evening of the offence. He described hallucinations, voices instructing him to kill, and visual distortions in which his father appeared as a snake. He admitted awareness of the dangers of mixing prescribed medication with illicit drugs and conceded that he had been warned against doing so. His account was coherent and consistent with the State witness testimony on how he killed and beheaded the deceased, the weapons he used and the bucket with the body parts that he took to his brother's place. There is no evidence from the State rebutting the accused's evidence that the accused had taken cannabis. Parry, the accused's brother, was not questioned about this by State counsel, despite the fact that counsel had in its possession the medical affidavit compiled by Dr. Mazorodze. In that affidavit, the doctor recorded the accused's admission that he had smoked cannabis and was hearing voices instructing him to kill on the day he killed his father. In light of this, State counsel ought to have put relevant questions to its witness.

34. Dr. Mazorodze's affidavit records that the accused admitted to having smoked cannabis on the day of the alleged crime and to hearing voices instructing him to kill. This confession to the doctor, together with the confession he later made in court when testifying that he had smoked cannabis before killing his father, demonstrates that the accused remained consistent in his account of cannabis use on the fateful day. Absent these admissions or confessions, neither the doctor nor the court would have known that he had taken cannabis that evening.

35. In his own words, the accused told the court that after smoking three to four cannabis cigarettes, prepared from the two sachets he had purchased, he felt the drug's effects

taking hold. This evidence, which the State did not rebut, demonstrates that the accused's hallucinations and disorientation arose immediately after smoking cannabis, superimposed upon a background of treated mental illness. His condition was therefore transient and induced by voluntary intoxication, rather than a permanent or long-lasting disorder within the meaning of section 227 (1) of the Criminal Law Code, which provides for the defence of mental disorder.

36. Section 227(1) provides that mental disorder at the time of the commission of a crime is a complete defence if it rendered the accused:
    - incapable of appreciating the nature or unlawfulness of his conduct, or
    - incapable of acting in accordance with such appreciation.

    However, subsection (3) of section 227 excludes mental disorder or defect that is neither permanent nor long-lasting, suffered as a result of voluntary intoxication.

37. In *casu*, we note that although Dr. Mazorodze concluded that the accused was mentally disordered at the time he committed the alleged offence, he did not specify the cause: whether it was the underlying psychiatric illness triggered by cannabis use or merely the result of cannabis intoxication. No medical evidence was presented by the defence (which bears the onus of proving insanity in terms of the proviso to section 18(4) of the Criminal Law Code) to establish what caused the accused's mental disorder on the evening he killed his father. The distinction between these two possible causes is critical: a transient drug-induced state does not excuse criminal liability under section 227 (1), whereas a genuine mental disorder does.

38. In the absence of clear psychiatric evidence linking the accused's mental disorder on the fateful evening to the underlying psychiatric illness for which he was receiving treatment and for which he had in fact been administered an injection on that very day, the court must treat the disorder as having been induced by cannabis intoxication. On that basis, the defence of mental disorder under section 227(1) cannot be availed to the accused. This conclusion is reinforced by the fact that his mental illness was under medical control at the time, making it more probable that the episode was precipitated by cannabis use rather than by a relapse of his treated condition. The smoking of cannabis was a voluntary choice the accused made and it resulted in him

being intoxicated. The intoxication was therefore voluntary and it was when he was voluntarily intoxicated that the accused killed the deceased.

39. Having concluded that the accused's state of mind at the time of killing the deceased was the product of voluntary intoxication, such a condition is expressly excluded from constituting a complete defence in terms of section 227(3). Accordingly, the proper legal conclusion is that the accused's conduct falls within section 222 of the Criminal Law Code, namely voluntary intoxication leading to unlawful conduct.

40. Section 222 of the Criminal Law Code provides that:

> If a person charged with a crime requiring proof of intention, knowledge or the realisation of a real risk or possibility and it is proved that—
>
> (a) the accused was voluntarily intoxicated when he or she did or omitted to do anything which is an essential element of the crime originally charged; and
>
> (b) the effect of the intoxication was such that the accused lacked the requisite intention, knowledge or realisation;
>
> he or she shall be guilty of voluntary intoxication leading to unlawful conduct instead of the crime originally charged and liable to the same punishment as if—
>
> (i) he or she had been found guilty of the crime originally charged; and
>
> (ii) intoxication had been assessed as a mitigatory circumstance in his or her case.

41. This provision provides that where a person is charged with a crime requiring proof of intention, knowledge, or awareness of a real risk, and it is established that the accused was voluntarily intoxicated at the time of committing the act or omission that constitutes an essential element of the crime, and that the intoxication prevented him from forming the required mental state, he will not be acquitted. Instead, he will be found guilty of voluntary intoxication leading to unlawful conduct. The law treats this offence as equivalent to the crime originally charged, and the accused is liable to the same punishment as if he had been convicted of that crime, save that the intoxication is considered only as a mitigatory circumstance. In effect, Section 222 ensures that voluntary intoxication cannot serve as a complete defence to criminal liability, but may reduce moral blameworthiness to some extent in sentencing.

42. Section 222 thus serves an important protective function in the administration of justice. It makes clear that voluntary intoxication leading to unlawful conduct does not absolve an accused of criminal responsibility, but instead attracts the same

punishment as the original charge. The rationale is straightforward: the law cannot permit individuals to evade liability simply because they chose to consume intoxicating substances that impair their judgment. To do so would undermine the deterrent effect of criminal law and erode public confidence in the justice system. By equating the punishment for voluntary intoxication with that of the underlying offence, Section 222 ensures that offenders are held accountable for the foreseeable consequences of their own choices. It reflects the principle that intoxication is not a shield against liability, but rather an aggravating circumstance, since the accused knowingly placed themselves in a state where they were likely to commit unlawful acts. In this way, Section 222 preserves the integrity of the criminal law, protects society, and ensures that justice is not defeated by claims of self-induced impairment.

43. According to Professor G. Feltoe in his *Commentary on the Criminal Law (Codification and Reform) Act [Chapter 9:23],* 2nd Edition 2012 at page 205, voluntary intoxication leading to unlawful conduct is classified as a strict liability offence. This means that the State is relieved of the burden of proving that the accused acted intentionally or negligently. All that is required is proof that the accused voluntarily consumed intoxicating substances and, while in that state, caused harm. The mental element that ordinarily underpins criminal liability such as intention, knowledge, or foresight of risk is immaterial in this context. It does not matter that the accused did not intend to cause harm, did not appreciate the nature of his actions, or did not realise the risk of unlawful conduct. The law treats the voluntary act of intoxication itself as sufficient to ground liability, because the offender knowingly placed themselves in a condition where unlawful acts were foreseeable. In this way, section 222 ensures that offenders cannot escape responsibility by claiming intoxication, and it underscores the principle that society must be protected from the dangers posed by individuals who deliberately impair their own judgment and self-control.

***Disposition***

44. The accused cannot be found guilty of murder under section 47(1) of the Criminal Law Code because the State did not prove the essential mental element required for that offence, namely, the intention to kill a human being. While the acts of striking,

beheading, and mutilating the deceased were deliberate and directed at causing death, the evidence established that the accused was hallucinating under the influence of cannabis and he said he believed he was attacking a snake. For murder, the *mens rea* must be directed at human life. If the accused believed he was killing an animal or non-human creature, then he did not form the requisite intention to kill a person. The State did not rebut this assertion, nor did it lead evidence to prove that the accused appreciated the nature or unlawfulness of his conduct in relation to the deceased. Consequently, the State failed to prove beyond reasonable doubt that the accused had the *mens rea* for murder. What emerged is that the accused voluntarily intoxicated himself and, in that state, committed unlawful conduct resulting in death. Thus, while the accused cannot be convicted of murder due to the absence of *mens rea*, he is properly convicted under section 222, which ensures accountability for his actions and subjects him to the same sentencing framework as murder.

45. Accordingly, the accused is found not guilty and acquitted of murder as defined in s 47(1) but is found guilty of voluntary intoxication leading to unlawful conduct as defined in s 222 of the Criminal Law Code.

## ***Sentencing Judgment***

46. *Introduction*

The accused, a male aged 37 years (33 at the time of the offence), was indicted for murder as defined in section 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The charge arose from the killing of his father at their homestead in Mudzi on 1 December 2022.

47. *The Plea*

The accused pleaded not guilty to the charge of murder.

48. *Conviction on Different Offence*

After a contested trial, the court found the accused guilty of voluntary intoxication leading to unlawful conduct as defined in section 222 of the Criminal Law Code. In terms of the law, this offence carries the same punishment as murder.

49. *The Relevant Facts*

The evidence established that on the night in question, the accused, under the influence of cannabis, struck his father three times on the neck and shoulder with an axe, beheaded him, and mutilated the body by severing the thumb and testicles. He placed the body parts in a bucket and carried them to his brother's homestead. The accused admitted smoking three to four cannabis cigarettes earlier that evening, which he said caused hallucinations leading him to perceive his father as a snake.

50. *The Law*

Section 222 of the Criminal Law Code makes it clear that where an offender is convicted of voluntary intoxication leading to unlawful conduct, the punishment is the same as that prescribed for the original charge; in this case, murder. This means that the court must adopt the sentencing approach applicable to murder, guided by Section 47(4) of the Code and the Sentencing Guidelines contained in S.I. 146 of 2023. Under Section 47(4), murder committed in aggravating circumstances attracts either life imprisonment or a definite term of not less than twenty years, while murder committed in other circumstances permits imprisonment for any definite period. The guidelines further provide presumptive penalties of twenty years' imprisonment for murder in aggravating circumstances and fifteen years for murder in other circumstances. Accordingly, the court must treat the offence of voluntary intoxication leading to unlawful conduct with the same gravity as murder, applying the same statutory framework, presumptive penalties, and sentencing considerations. The sentencing exercise therefore requires a full evaluation of aggravating and mitigating factors, with the starting point being the presumptive penalty for murder, and the final sentence reflecting the seriousness of the offence, the interests of justice, and the need to protect society.

51. *Reports and Other Written Documents*

The court had before it a psychiatric report confirming the accused's history of mental illness since 2011 and his treatment. The post mortem report stating the deceased's cause of death as beheading was also tendered. A victim impact statement was

tendered by the State from the accused's brother, Hamadziripi Mariwo, detailing the trauma suffered by the family and community.

52. *The Normal Range of Sentence*

Case law and the sentencing guidelines establish that murder in aggravating circumstances attracts a presumptive penalty of 20 years' imprisonment, with upward departure depending on aggravating or mitigating factors. The presumptive penalty is 15 years in other circumstances with upward or downward departure depending on aggravating or mitigating factors. This is the normal range of sentence applicable to the present case on the basis that murder is the underlying charge of the accused's conviction under s 222 of the Criminal Law Code.

53. *Determination of Aggravating Circumstances*

The court is satisfied that the killing of the deceased was committed in aggravating circumstances, thereby making the presumptive penalty of twenty years' imprisonment applicable in terms of section 47(4) of the Criminal Law Code and the Sentencing Guidelines. The manner in which the offence was carried out was exceptionally brutal and goes far beyond the ordinary features of homicide. This is the normal range of sentence applicable to the present case on the basis of s 222 of the Criminal Law Code the accused has been convicted of.

54. The deceased was struck three times on the neck and shoulder with an axe, a lethal weapon deliberately chosen and wielded by the offender. When the deceased fell to the ground and before he was dead, the offender proceeded to sever his head completely, beheading him in a gruesome fashion. The mutilation did not end there: the offender went on to cut off one thumb and the testicles, later stating that his father died after he had cut off the testicles. These acts of mutilation were not incidental but deliberate, calculated to ensure, in the offender's mind, that the "creature" he imagined was truly dead and could not return to life.

55. The use of multiple lethal weapons: an axe and a knife underscores the ferocity of the attack. The killing was accompanied by horrific desecration of the deceased's body, leaving the family and community deeply traumatised. The court cannot ignore the

fact that the deceased's wife, the offender's mother, witnessed the beheading and was forced to flee in terror despite her ill health. The psychological scars inflicted upon her and the wider family are immeasurable.

56. Taken together, these factors demonstrate that the killing was not a simple act of homicide but one marked by extreme violence, cruelty, and mutilation through the use of multiple lethal weapons. The Criminal Law Code and the sentencing guidelines are clear that such circumstances qualify as aggravating, warranting the presumptive penalty of twenty years' imprisonment as a starting point. We therefore determine that the killing of the deceased was committed in aggravating circumstances.

57. *Mitigating Factors*

In assessing sentence, the court has taken into account the mitigating circumstances advanced on behalf of the offender. He is a first offender, with no prior convictions recorded against him. This is a factor which ordinarily entitles an offender to some measure of leniency, as it suggests that he is not habitually criminal. At the time of the offence, he was relatively young, aged 33, and now stands before the court at 37 years of age. Youthfulness, while not an excuse for serious crime, is recognised in sentencing jurisprudence as a circumstance that may reduce moral blameworthiness, given the potential for reform and rehabilitation.

58. The court also notes that the offender has a documented history of mental illness dating back to 2011. He was under medical treatment at the time of the offence and had received his monthly injection on the very day of the killing. Although the court has already found that his state of mind on the fateful evening was the product of voluntary intoxication rather than a relapse of his psychiatric condition, the existence of a long-standing mental illness remains a relevant background factor in mitigation.

59. Further, the offender endured a lengthy period of pre-trial incarceration, spanning four years, during which he underwent psychiatric treatment. This period of confinement, though not punishment in the strict sense, is a deprivation of liberty that must be acknowledged in determining the appropriate sentence.

60. Finally, the offender narrated to the court, in detail and of his own volition, how he killed his father. This candid account enabled the court to understand his mental state, the role of cannabis intoxication, and the hallucinations he experienced at the time. While the narration did not absolve him of liability, it demonstrated a degree of cooperation with the court process and provided insight into his actions, which is a factor the court considers in mitigation.

61. *Further Aggravating Factors*

    Over and above the aggravating circumstances already identified in relation to the manner in which the deceased was killed, the court finds that there are additional aggravating factors which compound the seriousness of this offence. The offender deliberately smoked cannabis despite warnings not to mix illicit drugs with his prescribed psychiatric medication. He did so with full knowledge of the dangers, having been cautioned by his mother. His conduct was not impulsive but calculated. He purchased two sachets of "skunk" for USD 10.00 after selling two buckets of mangoes, prepared three to four cigarettes, and smoked them in succession. This demonstrates a conscious choice to indulge in a substance he knew could destabilise his mental health, thereby recklessly endangering both himself and those around him.

62. The trauma inflicted upon the deceased's wife, the offender's mother, is another aggravating feature. She witnessed her husband being beheaded by her own son. Despite being sickly, she was forced to flee in terror, crawling to her eldest son's homestead over 100 metres away. The psychological scars of witnessing such horror are immeasurable, and her subsequent ill health and frailty observed during court proceedings underscore the lasting impact of the crime.

63. The victim impact statement tendered by the deceased's son, Hamadziripi Mariwo, revealed that the family and community live in constant fear of the offender. He has a documented history of violence dating back to 2010, including prior assaults on his father and brother. His brother Parry testified that the offender once assaulted him so severely that he lost teeth, and that he had previously fractured the deceased's skull with a log. These accounts paint a picture of a man who is violent, unpredictable, and

a danger to society. The brothers pleaded that the offender should never be allowed to return home, as his presence would endanger the family and community.

64. *Pronouncement of Sentence*

In arriving at sentence, the court has carefully weighed the mitigating and aggravating circumstances. While the offender's status as a first offender, his relative youth at the time of the offence, his history of mental illness, and the four years spent in pre-trial incarceration are noted, these factors pale in comparison to the gravity of the offence and the overwhelming aggravation that characterises it. The killing of the deceased was not only brutal but accompanied by mutilation of the body, committed in the presence of the deceased's wife, who was left traumatised and broken. The offender's deliberate choice to consume cannabis despite clear warnings, his history of violence, and the fear expressed by his family and community confirm that he is a continuing danger to society.

65. The defence counsel's submissions were wholly inadequate and failed to engage with the seriousness of the offence. The initial prayer for a sentence of two years' imprisonment was not only unrealistic but demonstrated a lack of seriousness in appreciating the highly aggravatory circumstances of the killing. Even after the court expressed its displeasure, the revised prayer for fifteen years' imprisonment remained grossly disproportionate to the brutality of the crime. Counsel's submissions ignored the statutory framework, the sentencing guidelines, and the interests of justice, and the court cannot accept them.

66. Defence counsel, as officers of the court, bear a solemn duty to engage seriously and responsibly with the full circumstances of a case when making submissions in mitigation of sentence. This duty requires them not only to highlight factors that may reduce the severity of punishment but also to acknowledge and grapple with the aggravating features of the offence. Counsel must avoid trivialising the gravity of the crime or advancing submissions that are manifestly disproportionate to the seriousness of the conduct, as such approaches undermine the integrity of the judicial process. Instead, they are expected to assist the court in arriving at a just and balanced decision that serves both the interests of the accused and the wider society.

Meaningful submissions in mitigation should demonstrate a proper appreciation of the statutory framework and sentencing guidelines, and recognise the impact of the offence on victims and the community. In this way, defence counsel fulfil their professional responsibility to aid the court in dispensing justice, earning its respect, and ensuring that sentencing decisions are fair, principled, and aligned with the interests of justice.

67. Just as defence counsel have a duty to engage meaningfully with mitigation, State counsel carry an equally weighty responsibility when submitting in aggravation of sentence. Their role is not simply to demand the harshest possible penalty, but to assist the court in arriving at a sentence that is just, proportionate, and protective of society. This requires a careful and balanced presentation of the aggravating circumstances, supported by evidence, statutory provisions, and sentencing guidelines. State counsel must demonstrate how the offender's conduct fits within the framework of aggravation, including the impact on victims, the community, and the broader interests of justice. They must avoid perfunctory or mechanical submissions that fail to capture the gravity of the offence, and equally avoid excessive or unrealistic proposals that may appear detached from sentencing trends or judicial precedent. By engaging seriously with the facts, acknowledging both aggravation and any mitigation, and grounding their recommendations in law and principle, State counsel earn the respect of the court and fulfil their duty as officers of justice. In this way, they play a vital role in ensuring that sentences imposed are not only punitive but also protective, deterrent, and reflective of society's condemnation of the crime.

68. The sentencing process is a solemn stage in criminal proceedings, where the court must balance the rights of the offender against the interests of justice and the protection of society. In this process, both defence and State counsel play complementary roles that are indispensable to the court's ability to reach a fair and principled outcome. Defence counsel must engage seriously with the full circumstances of the case, acknowledging aggravating features while responsibly advancing mitigation, thereby ensuring that their submissions are meaningful and proportionate. State counsel, on the other hand, must present aggravation with equal seriousness, grounding their recommendations in law, evidence, and sentencing

guidelines, while avoiding exaggerated or perfunctory proposals. Together, these duties reflect the shared responsibility of counsel as officers of the court: to assist the court in arriving at just decisions that uphold the rule of law, protect society, and maintain public confidence in the administration of justice. When both sides discharge these duties with diligence, the sentencing process achieves its true purpose, which is delivering justice that is balanced, principled, and enduring.

69. The State counsel proposed thirty years' imprisonment, reduced to twenty-six years to account for pre-trial incarceration. This proposal was more aligned with the seriousness of the offence. However, the court is of the view that even this submission underestimates the gravity of the crime. The manner in which the deceased was killed, being struck with an axe, beheaded, mutilated, and desecrated represents one of the most horrific killings this court has ever encountered. The trauma inflicted upon the deceased's wife, the longstanding fear of the family and community, and the offender's violent disposition all point to a man who cannot safely be reintegrated into society.

70. The interests of justice demand a sentence that reflects the enormity of the offence, protects society from further harm, and upholds the sanctity of human life. The court is persuaded that imprisonment for life is the only just and proportionate sentence in the circumstances. No lesser sentence would adequately reflect the seriousness of the crime, the aggravating circumstances, and the danger posed by the offender.

    Accordingly, the offender is sentenced to imprisonment for life.

**MUREMBA J:……..**

*The National Prosecuting Authority*, the State's legal practitioners
*Mudimu Law Chambers*, accused's legal practitioners